

DeREIS v. BURKE

21CV45133

MOTION TO RELATE CASES

This is a civil action for partition of real property. There exists in this Court a probate action (10PR7129) involving the same family members and patriarchal assets. A notice of related cases was recently filed and served by one branch of the family (defendant in the civil action) on 05/05/23, and no response (see CRC 3.300(g)) was made thereto.

Cases are considered related to one another if they “(1) involve the same parties and are based on the same or similar claims; (2) arise from the same or substantially identical transactions, incidents, or events requiring the determination of the same or substantially identical questions of law or fact; (3) involve claims against, title to, possession of, or damages to the same property; or (4) are likely for other reasons to require substantial duplication of judicial resources if heard by different judges.” (CRC 3.300(a).) Both the probate and the civil actions involve property that was allegedly devised by will to one or more individuals who claim adverse interests thereto. Although there is not perfect parity between the two actions, it is apparent that the “probate” issues overlap (and possibly consume) the “civil” issues. There is no opposition from the other branch of the family, which signals a strong concession that the two causes ought to be related.

Motion to relate is GRANTED. Per CRC 3.300(h)(1)(C), the cases shall be assigned to be heard in Department 2. Although the motion to relate did not include a typical request to consolidate for purposes of discovery, this Court finds that such an order is warranted to avoid the inevitable duplication. The probate action (10PR7129), as the earlier case filed, and the one specializing in the handling of decedent’s assets, shall serve as the lead case, and all future filings shall be made in said case.

The Clerk shall provide notice of this Ruling to the parties forthwith. Counsel for Ms. Burke to prepare a formal Order pursuant to Rule of Court 3.1312 in conformity with this ruling.

HAMPTON v. EAST BAY MUNICIPAL UTILITY DISTRICT

22CV46329

DEFENSE MOTION FOR SUMMARY JUDGMENT

This is a personal injury action. Plaintiff generally alleges that while recreating along the south shore of Lake Camanche, near the Arrowhead campground, he dove into the water from a rock wall and struck a submerged boulder, resulting in quadriplegia.

Before the Court this day is a summary judgment motion. Defendant Urban Park Concessionaires (“UPC”) contends that it is entitled to summary judgment/adjudication because neither of the two causes of action stated in the operative First Amended Complaint (negligence and premises liability) can succeed against it. According to UPC, it did not owe plaintiff any duty of care to protect him from injuries caused by diving into a submerged boulder because:

1. UPC had no control over the water level in the lake, and thus had no ability to warn or guard against a boulder that became invisible;
2. plaintiff’s injury was the result of a volitional act of diving into unfamiliar waters and colliding with an open and obvious danger;
3. plaintiff’s injury was the result of an inherent/unavoidable risk associated with shallow-water diving, and UPC did nothing to increase that risk.

When this motion was first heard, this Court observed that the papers made frequent references to “evidence” but failed to provide supporting pinpoints to permit this Court to locate the “evidence” referenced. The hearing was continued to permit plaintiff to (1) secure the referenced evidence via additional discovery and (2) provide said evidence in a supplemental filing with the precision needed in a case such as this. Plaintiff has done both to this Court’s satisfaction, demonstrating sufficient triable issues to reach a jury. The motion for summary judgment/adjudication is DENIED.

The first issue is duty. UPC points to a contract it has with co-defendant EBMUD which permits a liberal reading that UPC is not *contractually* obligated – as between itself and EBMUD – to maintain the rock wall, shoreline and/or water levels adjacent thereto. There are triable issues of fact regarding the scope of the *contractual* obligations assumed by UPC, but those are largely irrelevant to the question of whether UPC had a duty (in law or by assumption) to make said premises reasonably safe under the circumstances. For that question, the focus is on control over the premises, not the arrangement UPC had with another party. (See *Alcaraz v. Vece* (1997) 14 Cal.4th 1149, 1156; *Lopez v. City of Los Angeles* (2020) 55 Cal.App.5th 244, 250, 258;